tive contestations, as the objective in such cases seems to be to manufacture and sustain future conflicts. The Shahi Jama Masjid of Sambhal is a good example to illustrate this. A little known person files a petition in a local court claiming that an ancient temple was demolished to build the Shahi Jama Masjid during the time of Babar. The local court not only admits this claim as a valid legal question, but goes a step further and orders a scientific survey of the masjid for the sake of legal clarity.

This brings the ASI into the picture, as the mosque is a functional religious place of worship, and is protected as a 'monument of national importance'. The ASI then conducts an archeological examination of a monument it has been conserving as a mosque for decades and becomes a party in the case to find out the 'exact' religion of the mosque. This legal-archaeological process eventually transforms a mosque protected by the ASI as a living heritage into a politically disputed entity. In other words, a communally provocative contestation is produced around a material object, a historical monument, to divide the local community of Sambhal into Muslim defenders and Hindu petitioners. It is worth noting that the Supreme Court has barred the local courts from accepting fresh cases challenging the ownership and title of any place of worship, and from ordering ASI type surveys of such sites, at least for the time being.

The Waqf (Amendment) Bill, 2024, signifies another form of this politics. For the sake of analysis, we may call it the structural contestations. In this case, the established legal-institutional mechanism is weaponised to make the Waqf issue a structurally disputed phenomenon. The explainer, issued by the Union ministry of minority affairs in September 2024 to clarify its position on the Waqf Bill, is very relevant in this regard, establishing a direct link between the Waqf and medieval Muslim rule. It says: "In India, the history of Waqf can be traced back to the early days of the Delhi Sultanate when Sultan Muizuddin Sam Ghaor dedicated two villages in favour of the Jama Masjid of Multan... as the Delhi Sultanate and later Islamic dynasties flourished in India, the number of Waqf properties kept increasing.... There was a case made for the abolition of Waqfs...in the late 19th century when a dispute over a Waqf property ended up in the Privy Council of London...the four British judges who heard the case described the Waqf as 'a perpetuity of the worst and the most pernicious kind' and declared Waqf to be invalid. However, the decision by the four judges was not accepted in India, and the Mussalman Waqf Validating Act of 1913 saved the Waqf.... Since then, no attempt has been made to curb Waqfs."

THE PETITIONS OVER THE LAWFULNESS OF HISTORIC MOSQUES ARE **PART OF THE PROVOCATIVE CONTESTATIONS.** THE GOAL, IT SEEMS, IS TO CREATE, SUSTAIN FUTURE CONFLICTS

This explanation creates an impression that dedication of properties for charitable and religious purposes was essentially a political act, one that was even questioned by the British authorities! Hence the Waqf Bill, 2024, which proposes to nationalise the institution of Waqf, since it clearly falls in the category of community endowment.

This kind of structural contestation, no doubt, helps in sustaining provocative issues like the Sambhal mosque case. However, it would be wrong to think that this obvious overlapping of Hindutva-driven issues does not create internal rifts and unease among different actors and groups. Rashtriya Swayamsevak Sangh (RSS) chief Mohan Bhagwat's recent statements are very relevant in this regard. He questioned the leadership claim of these self-declared Hindu leaders who make provocative contestations on a regular basis. It is obvious that the RSS is not interested in running multiple 'liberation' campaigns for imaginary temples, particularly in the present context when Hindutva politics needs to pay close attention to questions of governance.

Bhagwat's suggestions, however, are unacceptable to a section of Hindutva groups. In a way, they want to challenge the hegemony of the RSS as the dominant cultural-ideological force. The Akhil Bharatiya Sant Samiti (AKSS), for instance, has openly criticised Bhagwat for arguing that "religious matters should be decided by religious leaders rather than the RSS".

This is an entirely new trajectory, one that is certainly going to unfold in 2025. Two possibilities can be underlined in this regard. First, the RSS will try to re-establish its ideological dominance by evoking the old 'Hindu unity' argument. This might help its leaders emphasise the significance of long-term structural issues. Secondly, and perhaps paradoxically, Hindutva groups like AKSS could continue to intensify the temple-centric legal contestations. These campaigns have helped them carve out an independent space as the ultimate authority representing 'Hindu sentiments'. It will be interesting to see how both, the overlapping consensus and intersecting conflicts, determine the future trajectories of Hindutva politics in 2025. ■

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